

Court No. - 21

Case :- WRIT - C No. - 5804 of 2023

Petitioner :- Ankur Verma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Adarsh Kumar, Deepankar Chaudhary

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Supplementary affidavit filed today is taken on record.

The prayer made in the instant petition is for issuance of writ of certiorari quashing the electricity bill dated 19.11.2022; for adjusting the excess amount paid by the petitioner and not to charge any amount from the petitioner on the basis of defective meter reading.

The case of the petitioner is that the electricity meter at his premises is defective. He had moved an application on 01.05.2022 bringing the said fact to the notice of the respondents and praying that the previous bills issued on basis of the reading taken from defective meter be corrected.

It is an admitted fact on record that the petitioner has already deposited the entire sum in pursuance of the impugned bill. The controversy which now remains is regarding testing of the meter and correction of the bills already issued and return of excess amount, if any, to the petitioner.

Sri Chetan Chatterjee, learned counsel appearing on behalf of respondent nos. 2 & 3 states that in case the petitioner applies as per the provision of Clause 5.6(b) of U.P. Electricity Supply Code, 2005 in prescribed format along with requisite testing fee, the test meter will be installed and consequential steps will be taken as per the procedure stipulated in that behalf.

Learned counsel for the petitioner states that the petitioner will file appropriate application along with requisite fee and prays that the respondents be directed to take appropriate action accordingly.

Having regard to the submissions made, the petition is disposed of with liberty to the petitioner to apply in prescribed format (Annexure-5.1 of U.P. Electricity Supply Code, 2005) along with requisite testing fee and in which event, the respondents will proceed in accordance with the procedure prescribed under

the U.P. Electricity Supply Code, 2005. In case it is ultimately found that the meter was running fast, the respondents will make adjustment of the amount in future bills.

The petition stands disposed of accordingly.

Order Date :- 20.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)